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Tentative Ruling

Re: **Jorgensen & Sons, Inc. v. VL Management, Inc.**
Superior Court Case No. 23CECG02950

Hearing Date: September 23, 2026 (Dept. 501)

Motion: Default Prove-Up

Tentative Ruling:

To grant and sign the proposed judgment. No appearance necessary.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/21/26.
(Judge's initials) (Date)

(46)

Tentative Ruling

Re: **Laren Cyr Galpin v. Merced Hospice, Inc.**
Superior Court Case No. 24CECG04875

Hearing Date: September 23, 2026 (Dept. 501)

Motion: by Plaintiff to Quash the Subpoena for Production of Business
Records to Community Medical Center Health Management

Tentative Ruling:

To deny plaintiff's motion to the extent that she seeks to quash the business records subpoena issued to Community Medical Center Health Management in its entirety. To limit the subpoena to those medical records pertaining to plaintiff's July 14, 2024 knee injury and subsequent restrictions. To deny defendant's request for sanctions.

Explanation:

Plaintiff Laren Cyr Galpin ("plaintiff") seeks to quash defendant Merced Hospice Inc.'s ("defendant") subpoena seeking certain records from Community Medical Center Health Management. Plaintiff submits that these records are overbroad and irrelevant or otherwise subject to the right of privacy. Accordingly, plaintiff seeks to quash the subpoena in its entirety. Alternatively, plaintiff requests the court limit the subpoena to records pertaining to plaintiff's July 14, 2024 knee injury.

A party is entitled to discover the information as long as it is reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) In accordance with the liberal policies underlying the discovery procedures, doubts as to relevance should generally be resolved in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.) While discovery is broad, the right to discovery is not absolute. The California Constitution protects the individual's reasonable expectation of privacy against a serious invasion. (*Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 370.) A reasonable expectation of privacy is an objective entitlement founded on broadly based and widely accepted community norms. (*Hill v. Nat'l Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 37.) The invasion of privacy must be serious in nature, scope, and actual or potential impact to constitute an egregious breach of social norms. (*Ibid.*) If the invasion is serious, the invasion must be measured against legitimate and important competing interests. (*Id.* at p. 38.)

Specifically, the patient-physician privilege creates a zone of privacy whose purpose are (1) to preclude the humiliation of the patient that might follow disclosure of ailments and (2) to encourage the patient's full disclosure to the physician all of the information necessary for effective diagnosis and treatment of the patient. (Evid. Code, § 990, et seq.; *Board of Medical Quality Assurance v. Gherardini* (1979) 93 Cal.App.3d 669, 678-679, overruled on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531.) Thus, medical records fall within the protected ambit of the state Constitution right to privacy. (*Board of Medical Quality Assurance v. Gherardini, supra* 93 Cal.App.3d at p.

679.) Even absent a statutory privilege, the constitutional privilege would be held to operate. (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014.)

Where a party raises physical conditions as an issue in the case, he waives his right to claim that the relevant medical records are privileged. (*Vesco v. Superior Court* (2013) 221 Cal.App.4th 275, 279.) And, even if plaintiff has not waived the right to privacy, the court may still order production of the private information if defendant has made a showing that the information is directly relevant to the issues of the case, and the need to discover the information outweighs the plaintiff's right to keep the information private. (*Board of Medical Quality Assurance v. Gherardini, supra*, 93 Cal.App.3d at p. 680.) If discovery is allowed, however, it must be narrowly tailored to create the least intrusive invasion of privacy. (*Ibid.*)

Here, it appears that the subpoena at issue is overbroad and violates plaintiff's constitutional right to privacy. (Cal. Const., Art. I, § 1; *Britt v. Superior Court (San Diego Unified Port Dist.)* (1978) 20 Cal.3d 844, 855, 856.) The subpoena requests "All documents and records pertaining to the care, treatment, and examination of [plaintiff] ... from January 1, 2016 to the present." (Khosrovian Decl., ¶¶ 6, 7; Exh. B.) Defendant does not justify the broad 10-year range of medical records sought.

In its opposition, Defendant submits a limitation to the subpoena as follows:

All nonprivileged records concerning Plaintiff's July 14, 2024 injury as it relates to her knee; Plaintiff's knee condition; evaluation or treatment relating to that condition; medical and work restrictions relating to Plaintiff's knee; functional-capacity and work-status determinations; return-to-work or full-duty releases; and any modification, continuation, reduction, or removal of restrictions relating to Plaintiff's knee condition. (Opp., 7:5-11.)

The court is satisfied that this proposed limitation narrowly tailors the subpoena request to the medical condition at issue in the complaint. Plaintiff's argument that the request for these records relating to her knee condition remains overbroad and irrelevant is unconvincing. Plaintiff placed the condition of her knee at issue, as well as the physical restrictions resulting from her injury and condition. These limited records are relevant to the issues of the case.

Therefore, the court intends to deny the plaintiff's motion to the extent that she seeks to quash the medical records subpoena in its entirety, but the subpoena shall be limited as set forth above, to include only those records relating to plaintiff's knee injury and subsequent restrictions.

The court intends to deny defendant's request for sanctions against plaintiff. "[I]n making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/21/26
(Judge's initials) (Date)